

INTA Practice Guides Report

Trademark Enforcement Guide

Czech Republic

SINGLE JURISDICTION REPORT

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I. Pre-filing Requirements/Demand Letters — A. Pre-filing Requirements/Demand Letters

- Although it is not mandatory to send a demand letter before instituting proceedings in this jurisdiction, it is common to send such a letter. If a demand letter is not sent, the plaintiff will not be allowed to claim reimbursement of legal representation costs during a subsequent court action.
- Although it is not mandatory to attempt to settle with the other party before instituting proceedings in this jurisdiction, it is commonly done.
- It is neither mandatory nor common to engage in mediation or other alternative dispute resolution proceeding with the other party before instituting infringement proceedings in this jurisdiction.
- Before initiating an infringement proceeding, a party is required to take the following actions: none. Before initiating an infringement proceeding, a party may take the following actions: none.
- The name for such a letter is: pre-litigation notice (předlitigační oznámení).
- Such a letter should be sent at the following time: within a reasonable period of time before initiation of a court claim, i.e., no less than seven days.
- Such a letter can be sent by: the owner of the mark; a licensee; an attorney for the owner of the mark (preferred); an attorney for the licensee of the mark.
- Specific rules/customary practices applicable to such letters include: the form or content of the letter (see below).
- With regard to the form or content of the letter, the following details are commonly included: identification of claimant; details of alleged rights infringed; identification of any trademark registrations owned by the objecting party; details of the alleged infringement; potential claims (other than infringement), e.g., damage claims or costs; time for response; consequences of not responding within the time set out in the letter; threat of legal action; request for undertaking, including obligation to pay contractual penalty for future infringement; request for summary of sales, revenues and/or profits derived from the use of the allegedly infringing mark; request for identification of customers and/or suppliers of products bearing the allegedly infringing mark.
- The consequences of not following the particular rules/customary practices listed above when drafting the letter are: If the demand letter does not specify that it is a pre-litigation notice to the defendant, the plaintiff will not be allowed to claim reimbursement of legal representation costs during a subsequent court action.
- The benefits of sending a demand letter before initiating infringement proceedings rather than immediately initiating proceedings without sending a demand letter include: avoidance of penalties or cost awards; may help ascertain that infringement was inadvertent; may help ascertain whether alleged infringer has meritorious defenses; results may be achieved more quickly and at lower cost; may be viewed favorably in litigation by decision maker; may lead to negotiations and avoid the need to commence proceedings.

- The potential consequences of sending such a letter include: the possibility of the recipient's initiating infringement proceedings based on alleged prior rights; destruction of evidence; adverse publicity and/or adverse social media response; loss of the element of surprise, giving infringer time and opportunity to prepare a defense.
- Factors to consider if a demand letter is sent and proceedings for infringement are not initiated include: none. There are no adverse consequences if a demand letter is sent and proceedings are not initiated.

II. Claim for Infringement of a Registered Trademark — A. Claim for Infringement of a Registered Trademark

- There is only one court system or administrative body that has jurisdiction over claims for infringement of a registered trademark, which is: the Municipal Court in Prague. The Industrial Property Rights Enforcement Act of 2006 (Act No. 221/2006 Coll.) introduced an element of specialized IP decision making in the Czech Republic by appointing, with effect from January 1, 2008, the Municipal Court in Prague to be the only first instance court in the country to hear all claims arising from registered intellectual property rights and competent to review any administrative decisions issued by the Czech IP Office. In addition, this court is the designated Community Trade Mark (now European Union Trade Mark) court, as well as the designated Community Design court, in the Czech Republic.
- The following factors determine which court or administrative body can hear a case: nature of the right; national, international or EU trademark
- The following parties have standing/authority to institute proceedings for infringement of a registered trademark: the registered proprietor of a mark; an exclusive licensee (the owner/registered proprietor need not join in the proceedings); a non-exclusive licensee (the owner/registered proprietor need not join in the proceedings).
- If there is more than one registered proprietor/owner, they must all join in instituting the proceedings.
- Trademark infringement proceedings are decided by a judge with no jury. There is a three-judge panel.
- The time limit for initiating trademark infringement proceedings is: IP infringement actions must be filed within three years from the date on which the claim arises.
- Once infringement proceedings are initiated, the stages of the proceedings include: filing of claim (including presentation of facts and legal arguments); filing of reply/defense to claim; filing of counterclaim; filing of evidence; mediation (The court can order the parties to attempt to reach a settlement.); preliminary motions (to dismiss, for preliminary injunction or temporary restraining order) (Preliminary injunction is a separate ex parte proceeding.); filing of briefs/written arguments; oral hearing; oral testimony/examination of witness; trial; judgment/decision.
- The average amount of time from instituting infringement proceedings through trial/final hearing is: between one and two years.
- The average amount of time from the end of the trial/final hearing to the issuance of judgment is: Issuance of judgment occurs immediately at the end of the trial/hearing. Written judgment typically follows within 60 days.

III. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off — A. Claim for Infringement of Unregistered Trademark/Unfair Competition/Passing Off

- Unregistered trademarks are protected under the following laws: trademark statute; unfair competition statute.

- The following parties have standing/authority to institute proceedings for infringement of an unregistered trademark: the owner of the unregistered right.
- If there is more than one owner of an unregistered mark, they must all join in instituting the proceedings.
- It is possible to institute a single proceeding for both registered trademark infringement (under the trademark law) and unregistered trademark infringement (under the law(s) listed above).

IV. Civil Enforcement-- Emergency Measures — A. Ex Parte Injunctions

- Ex parte injunctions are available to claimants seeking emergency relief.
- When applying for an ex parte injunction, it is not necessary to institute infringement proceedings at the same time.
- The types of ex parte injunction available include: prohibitory (to prohibit the defendant from performing certain acts); mandatory (to require the defendant to perform certain acts).
- There is no specified statutory or court-determined deadline for seeking an ex parte injunction.
- A delay in applying for an ex parte injunction after becoming aware of the alleged infringing activities can prevent the applicant from obtaining the desired relief under the following circumstances: if, because of the delay, it is not possible to prove "urgent need" as part of the injunction claim.
- The purpose of an ex parte injunction is: to restrain further infringing activities until trial or a further hearing; to prevent the consequences of an infringement or violation; to obtain or preserve evidence; to ensure the effectiveness of the eventual remedy; to preserve the status quo; to prevent irreparable injury; to protect the public interest.
- The strategic benefits of obtaining an ex parte injunction include: putting the defendant at a strategic disadvantage at the beginning of the case; obtaining or preserving evidence; ensuring the availability of the requested remedy; ensuring the availability of compensation for damages; getting an assessment of the merits by the court; reducing potential damage caused by infringement.
- The risks of seeking an ex parte injunction (if it is not granted) are: increased costs of the proceedings; early adverse determination; potential for a damages claim under a bond or a cross-undertaking (i.e., an undertaking in damages).
- An ex parte injunction remains in place: until a decision is made in the main proceedings or until the term stated in the injunction expires, if the main proceedings are not initiated.
- The defendant is notified of the grant of an ex parte injunction: by the court.
- The procedure for applying for an ex parte injunction includes the following: motion; supporting memorandum/points and authorities of law; supporting affidavits or declarations; supporting documentary evidence; posting bond, cross-undertaking or other security.
- The amount of the bond or cross-undertaking is determined based on: statutory provisions.
- The factors considered in the granting of an ex parte injunction are: inadequacy of damages as a remedy; balance of convenience or hardships; i.e., consideration of the hardship to each side arising from the grant and from the denial of the injunction; whether the status quo should be preserved; urgency; timeliness with which plaintiff sought the injunction; the circumstances supporting the injunction must be demonstrated to a reasonable level of probability and, in addition, claimant must also show that its case is arguable.
- The following forms of evidence are admissible in support of an ex parte injunction

application:documents;affidavitssamples of infringing product(s).

- If the court later finds that the ex parte injunction was granted in error, the applicant will be required to:compensate the defendant for damages suffered from the injunction.
- The cost of obtaining an ex parte injunction, including attorney fees and court costs (but not including the cost of a bond), is approximately: less than USD 10,000.
- The costs of an ex parte injunction are recoverable as follows: The successful party is entitled to request attorney fees; however, this does not ensure the recovery of all attorney fees--rather, only an amount decided by the judge.
- On average, an ex parte injunction is issued within the following time period (counting from the filing of the application to the issuance of the injunction): between 2 and 10 days (7 working days).
- In an ex parte proceeding, a party may request an order to enter the premises of another party and to search for property/documents/items that may become evidence (i.e., a "search order" or "search and seizure order").
- The following party or parties will be present at the inspection: the judge(s); the party who obtained the order; the party against whom the order is granted; the party's/parties' legal representative(s).
- In an ex parte proceeding, a party may request an order to freeze the assets of another party to prevent dissipation of the assets before conclusion of the proceedings (i.e., a "freezing order" or "freezing injunction").
- The grant of an ex parte injunction can be appealed.
- Appeal of a decision granting an ex parte injunction cannot be expedited.
- The denial of an ex parte injunction can be appealed.
- Appeal of a decision denying an ex parte injunction cannot be expedited.

IV. Civil Enforcement-- Emergency Measures — B. Interim Inter Partes Injunctions

- Interim inter partes injunctions are not available to claimants seeking emergency relief.

V. Early Resolution of Litigation — A. Interim Applications Available for Ending Proceedings Early

- A party can seek to end proceedings prior to trial or final determination by interim applications for:summary judgment (judgment as a matter of law when facts are undisputed).

V. Early Resolution of Litigation — B. Summary Judgment

- A party can conclude proceedings early by obtaining summary judgment in the following circumstances:Although there is no summary judgment procedure, a "judgment by default" may be obtained if a defendant, who has been duly served with the motion and summons for proceedings at least ten days before the date of proceedings and has been informed of the consequences of missing the first hearing without a reasonable and timely excuse, does not attend the hearing. The remainder of the responses in this section refer to a judgment by default.
- Summary judgment can be requested by the following parties:plaintiff.
- The applicant for summary judgment must:obtain permission of the court.
- A ruling on a motion for summary judgment may be appealed:if the motion is granted.
- A summary judgment may be appealed on the following grounds:the court improperly resolved disputes about material facts;the court made an error of law.

V. Early Resolution of Litigation — C. Trial of Preliminary Issue

- Proceedings cannot be expedited through an early trial or hearing on a preliminary issue.

VI. Evidence — A. Evidence

- The following forms of evidence can be relied upon in support of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence (including samples/photos of allegedly infringing items); expert evidence; oral testimony; survey evidence.
- The following forms of evidence can be relied upon in defense of a claim in this jurisdiction's trademark infringement proceedings: documentary evidence; expert evidence; oral testimony; survey evidence.
- A claimant must present or give notice of any evidence on which it will rely before commencement of the proceedings.
- A defendant must present or give notice of any evidence on which it will rely at the time of the initial response to the claim.
- A party to the proceedings may obtain information that is within the possession or control of another party to the proceedings: at the request of the tribunal; at the request of the party.

VII. Trial/Oral Hearing — A. Trial/Oral Hearing

- Evidence may be presented at the trial or oral hearing in the form of: written witness statements (including, e.g., affidavits, depositions, or statutory declarations); oral testimony of witnesses; documents; surveys; physical objects; expert testimony.
- It is possible to introduce surveys in evidence for the following issues: secondary meaning/acquired distinctiveness; whether a mark is famous or well known; likelihood of confusion; dilution; genericness; functionality.
- The use of survey evidence is subject to the following requirements: Use is generally allowed, at the discretion of the judge.
- The length of an average trial or final hearing in a civil action for trademark infringement is: between two and eight hours.
- The nature of the proceedings is: a hybrid of adversarial and inquisitorial.
- A trial or final hearing includes the following: opening statements by counsel for each party; plaintiff's case through examination of witnesses by plaintiff; defendant's case through examination of witnesses by defendant; plaintiff's case through examination of witnesses by judge; defendant's case through examination of witnesses by judge; closing argument by counsel for each party; discussion of factual issues and/or evidence; comment]discussion of legal issues; questions to parties; statements of parties.
- Witnesses are examined by: the judge; the lawyers. Cross-examination of witnesses is not common in the Czech Republic. It is, however, possible depending on the judge and how he or she controls the specific dispute. However, IP matters tend to rely more on facts that are backed up by instruments than on witness testimonies (except in some situations that rely on proving the facts of unfair competition).
- As part of trial preparation, the parties do the following: provide draft findings and conclusions if the proceeding is to be decided by a judge; consider possibility for settlement.

VIII. Judgment/Final Orders — A. Judgment/Final Orders

- It takes approximately the following amount of time for a decision to be handed

down after trial or final hearing: Typically, the judge decides at the hearing and then issues a written decision in 60 days.

- The decision may be appealed within the following time frame: 15 days from receipt of the written decision.
- Appealing a decision is of right; no permission is needed.
- There is only one court to which an initial appeal can be made, which is: Appeals from cases arising from the Municipal Court in Prague acting as court of first instance in claims involving registered intellectual property rights are heard by the High Court of Appeals in Prague.
- The appeal court reviews: both the facts of the case and legal issues.
- Further appeal is possible to the following court: the High Court of Appeal, if the case originates from a Regional Appeal Court; the Supreme Court of Appeals, if the case originates from a High Court.
- Further appeal is granted as a matter of right; no permission is needed.

IX. Post-Judgment Matters — A. Post-Judgment Matters

- A defendant has the following length of time to comply with an order issued in a judgment: three days from the time the decision becomes final.
- A judgment may be enforced by way of the following proceeding(s): judicial enforcement or use of a court-appointed executor.

X. Costs of Litigation — A. General

- The types of costs that may be recovered by the prevailing party during/after legal proceedings include: attorney fees; court fees; expert fees; bond or security for costs.
- A range for the all-inclusive cost of a typical action for trademark infringement from filing of the claim through trial is as follows: less than USD 20,000.
- The successful party in a trademark infringement claim can expect to recover a portion of the attorney fees incurred (as distinguished from damages awarded). See below.
- The average percentage of attorney fees incurred in a trademark infringement claim that a successful party can expect to recover is: variable from case to case, because the amounts typically are set by the judge on the basis of the number of acts performed under the fee tariff of the Czech Chamber of Advocates.
- Attorney fees are assessed using the following method(s): a fixed fee schedule.

X. Costs of Litigation — B. Security for Costs

- When initiating proceedings, a plaintiff may be required to provide security for any costs that may eventually be awarded against it.
- A defendant may be required to provide security for costs after proceedings are initiated.
- Application for security for costs is made via the following procedure: application to the court by either party with evidence and justification of necessity.
- For the court to grant security for costs, the following conditions must be met: justification of necessity.
- An application for security for costs can be made at the following stage of the proceedings: anytime before the final hearing.
- In granting security for costs, the court may make the following orders: the amount of the security; the manner in which the security must be given; the time frame in which the security must be given.
- An order for security for costs cannot be appealed.

- If security is ordered, it is customarily provided in the form of:cash.

XI. Remedies — A. Remedies

- The following monetary remedies are available for trademark infringement:accounting of defendant's profits and actual damages.
- Actual damages are assessed using the following methods:damages to plaintiff;constructive license fee/reasonable royalty.
- Where both damages and an accounting of profits are available and a party proves both, the party will receive both.
- Determination of the type and amount of remedy is part of the trial on liability.
- The following non-monetary remedies are available for trademark infringement:injunctions;delivery up of infringing labels, packaging or products;destruction;disposal;removal or obliteration;public dissemination of judgment;recall of infringing products;corrective advertising;identification of supplier.

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